

**RECORD OF PROCEEDINGS FOR THE GOVERNING BODY
OF THE CITY OF CHEYENNE
Office of City Clerk**

November 12, 2013

Due to the Veterans Day holiday, the Governing Body of the City of Cheyenne instead convened in regular session on this date beginning at 6:00 p.m. in Council Chambers. Present were: MAYOR - Richard L. Kaysen; COUNCIL MEMBERS - Mr. Allen, Mr. Brown, Ms. Broyles, Mr. Cook, Mr. Luna, Dr. Rinne, Mr. Shanor, Mr. Valdez and Ms. Williams. Absent: Mr. Luna. Also present: Carol Intlekofer, City Clerk; Lois Huff, City Treasurer, and Dan White, City Attorney. The pledge of allegiance was recited.

Consent Agenda. (All agenda items listed with the designation of [CA] are considered to be routine items by the governing body and will be enacted by one motion. There will be no separate discussion on these items unless a member of the governing body so requests and support by two other members is received. Any item removed from the Consent Agenda will be considered in its normal sequence on the agenda.) Upon request by Mr. Allen, and pursuant to support received by Dr. Rinne and Mr. Shanor, Agenda Item #20 was removed from the Consent Agenda. Mr. Allen moved to approve remaining Consent Agenda items, seconded by Mr. Brown. Motion carried. Voting "yes" -- all members of the governing body present.

CA] Minutes from Regular Meeting of the Governing Body on October 28, 2013. Motion (per Consent Agenda) carried.

Mr. Brown declared a conflict of interest (business interest in voucher payable to Ameri-Tech HVAC Services) and vacated Council Chambers. Mr. Valdez moved to approve payment of vouchers as presented, seconded by Mr. Allen. Motion carried. Voting "yes" -- all members of the governing body present in Council Chambers. Following announcement of the vote, Mr. Brown returned to Council Chambers.

Mayor Kaysen opened a public hearing to receive public comments regarding whether the Mayor and the City Clerk of the City of Cheyenne should be authorized to file an application for grant and/or loan funds under the Wyoming Business Council Business Ready Community Grant and Loan Program for funding for the construction of a rail spur within the Swan Ranch Industrial Park, located generally west of Interstate 25 and south of Interstate 80, Cheyenne, Laramie County, Wyoming. Scott Sutherland, Granite Peak Development, provided a brief overview of the initial Swan Ranch Industrial Park project, and information on the components of the proposed grant and/or loan request involving the rail spur connection and associated development agreement. He stated due to rising costs for the project, they are looking at the grant and loan program to help off-set expenses. He advised even though the City will be the "venue" for applying for the loan, the only indebtedness that may occur will be Granite Peak's responsibility. Mr. Sutherland advised of the application and approval process and provided additional information contained in the development agreement concerning Granite Peak's responsibilities, noting that Agenda Item #18 (Resolution) is affiliated with moving the application forward. There

being no further comments or input and purpose of the public hearing having been met, Mayor Kaysen closed the hearing.

Mayor Kaysen opened a public hearing to receive public comments on the following topic: To determine whether compliance of annexation conditions required by Wyo. Stat. §15-1-402 exist for a parcel of land being situated in a portion of the Northwest Quarter of Section 13, Township 13 North, Range 67 West of the 6th P.M., Laramie County, Wyoming to be known as the CST Annexation (located at the northwest corner of the intersection of West College Drive and Southwest Drive). Jim Flesher, Planning and Development office, reviewed requirements and compliance of conditions contained in Wyo. Stat. §15-1-402, including specific information indicating compliance with Wyo. Stat. §15-1-402(a)(i) through (vi). Mr. Flesher advised the parcel is proposed to be part of a redevelopment (expansion) of an existing truck stop business. Upon inquiry, Mr. Flesher provided information on the site location relative to where the animal shelter is located. There being no further comments or input and purpose of the public hearing having been met, Mayor Kaysen closed the hearing.

Mayor Kaysen opened a public hearing to receive public comments on the following topic: To determine whether compliance of annexation conditions required by Wyo. Stat. §15-1-402 exist for a parcel of land being situated in a portion of the Northeast Quarter of Section 26, Township 14 North, Range 66 West of the 6th P.M., Laramie County, Wyoming to be known as the Koritnik Annexation (located at 3904 Whitney Road approximately 200 feet west of the northwest corner of the intersection of Whitney Road and Countryside Avenue). Jim Flesher, Planning and Development office, reviewed requirements and compliance of conditions contained in Wyo. Stat. §15-1-402, including specific information indicating compliance with Wyo. Stat. §15-1-402(a)(i) through (vi). Upon inquiry, Mr. Flesher confirmed the petition requesting annexation was submitted by the property owner; that the parcel is approximately one acre in size, and that the type of proposed property development action has not yet been received. There being no further comments or input and purpose of the public hearing having been met, Mayor Kaysen closed the hearing.

ORDINANCE - Amending, creating, deleting and re-creating various chapters and Sections within Title 8, Health and Safety, of the Cheyenne City Code relating to general provisions pertaining to Fire Protection and Regulations, and adoption of the International Fire Code, 2012 Edition, and certain codes and practices promulgated by the National Fire Protection Association (postponed from Oct. 28, 2013). Mr. Shanor declared a conflict of interest (property business interest) and vacated Council Chambers. Chief Jim Martin, Fire and Rescue Department, spoke in favor of the ordinance. Reporting for Public Services Committee, Mr. Brown moved to approve on third and final reading, seconded by Mr. Allen. Mr. Brown moved to amend Section 4 by replacing the current language with the following: "That this ordinance shall be in full force and effect upon its passage and publication.", seconded by Ms. Broyles. Motion to amend carried. Voting "yes" -- all members of the governing body present in Council Chambers. Comments were expressed regarding retroactivity concerns, and the need to have the updated fire code in place. Main motion as amended carried. Voting "yes" -- all members of the governing body present in Council Chambers. Following announcement of the vote, Mr. Shanor returned to Council Chambers. (#4004)

ORDINANCE - Amending various sections contained in Chapters 8.20, 8.24, 8.28 and 8.32 within Title 8, Health and Safety, of the Cheyenne City Code relating to General Provisions pertaining to Fire Protection and Regulations (postponed from Oct. 28, 2013). Mark Norford, Division Chief of Prevention, Fire and Rescue Department, spoke in favor of the ordinance and explained changes contained in a proposed substitute ordinance. Mr. Brown moved to approve on third and final reading, seconded by Ms. Broyles. Mr. Brown moved to amend by substitute (dated Oct. 22, 2013), seconded by Ms. Broyles. It was advised the substitute provides for clerical corrections and does not change the substance of the ordinance. Motion to amend by substitute carried. Voting "yes" -- all members of the governing body present. Mr. Brown moved to amend Section 6 of the substitute by replacing the current language with the following: "That this ordinance shall be in full force and effect upon its passage and publication.", seconded by Ms. Broyles. Motion to amend carried. Voting "yes" -- all members of the governing body present. Main motion as amended by substitute, as amended, carried. Voting "yes" -- all members of the governing body present. (#4005)

ORDINANCE - Amending Chapter 2.32, Fire Department, Section 2.32.020, Department Personnel, and Chapter 2.84, Miscellaneous Boards and Commissions, Section 2.84.050, International Fire Code Board of Appeals, of Title 2, Administration and Personnel, of the Cheyenne City Code pertaining to the Fire and Rescue Department (postponed from Oct. 28, 2013). Mark Norford, Cheyenne Fire and Rescue, explained the ordinance will "clean-up" language and clarify the department's organizational structure. Mr. Brown moved to approve on third and final reading, seconded by Mr. Cook. Mr. Brown moved to amend Section 2 by replacing the current language with the following: "That this ordinance shall be in full force and effect upon its passage and publication.", seconded by Mr. Shanor. Motion to amend carried. Voting "yes" -- all members of the governing body present. Main motion as amended carried. Voting "yes" -- all members of the governing body present. (#4006)

ORDINANCE - Amending the Cheyenne Unified Development Code (UDC), as approved by Ordinance No. 3943 on January 23, 2012, to adopt amendments identified as Election and Ideological Sign Amendments from 2013 Annual Review. Mark Butler commented on reasonable restrictions with regard to election campaign signs and posed a scenario relative to neighborhood disputes involving ideological signs. Tim Kingston spoke in favor of the ordinance as reviewed, discussed and amended at the Public Services Committee meeting; reviewed a past court decision involving the City and election signs relative to time limitations; current sign provisions contained in the UDC, and commented on freedom of speech relative to election as well as ideological signs. Boyd Wiggam, Wyoming Liberty Group, spoke in favor of the ordinance, referencing suggestions for changes to the proposed ordinance that he had previously submitted to governing body members, and protecting individual liberty and first amendment rights. Mr. Brown moved to approve on second reading, seconded by Mr. Shanor. Mr. Brown moved to amend language in Section 7 (Residential District Sign Allowances) by removing "No single sign shall be more than 6 square feet" and replacing it with "No single sign shall be more than 16 square feet", seconded by Ms. Williams. Pursuant to a point of inquiry raised by Mr. Shanor, it was confirmed the amendment recommended by Public Services Committee was to change 6 square feet to 16 square feet (4x4 ft in size). Discussion topics included: Comments in support as well as non-support of the proposed amendment; placement of signs generally throughout the community and City Code

restrictions contained in Chapter 8.52.; large free-standing signs and placement of same; concern with loosening regulations; sign regulations applicable to election and ideological signs vs. commercial advertising signs; large signs obstructing vehicle operators' sight lines and potential liability; size restrictions; enforcement concerns; public right-of-way areas vs. private property owner's decision to allow sign placements, and difference between election signs vs. ideological signs. During discussion and upon inquiry, Dan White, City Attorney, advised, without conducting further review, it would appear that the proposed ordinance changes to the UDC would not apply to commercial signs, and that without specific facts involving an incident he could not respond to the inquiry raised concerning determination of liability fault generally if a vehicular accident occurred due to driver distraction while viewing a sign. Motion to amend carried. Voting "yes" -- Mr. Allen, Mr. Brown, Mr. Shanor, Mr. Valdez, Ms. Williams and Mayor Kaysen. Voting "no" -- Ms. Broyles, Mr. Cook and Dr. Rinne. Dr. Rinne moved to amend by deleting the 3rd bullet point in Sections 7 and 9, addressing election signs (Residential District Sign Allowances and Non-Residential District Sign Allowances respectively), that reads "No time limitations", seconded by Ms. Broyles. Mr. Kingston spoke in opposition to the amendment stating his belief that keeping the wording was "key" and that citizens should be able to choose the length of time for sign placements. Discussion followed on signage time and size limitations; current UDC restrictions; election sign placement restriction near polling places as required by state law; homeowner associations and covenant restrictions, and private property owners' and election candidates' responsibilities. During discussion and upon inquiry, Brandon Cammarata, Planning and Development Director, explained current provisions contained in the UDC relative to election signs being treated as temporary signs, and that the proposed ordinance would change the omit the reference to temporary signs, and provided information on allowable signs during the last general election year, noting that regulation of sign placements near an election polling place was outside of the UDC as it was more strictly regulated by state statute. Mr. White confirmed that the restriction of election signs near polling places is a state law. Motion to amend failed. Voting "yes" -- Ms. Broyles, Mr. Cook and Dr. Rinne. Voting "no" -- Mr. Allen, Mr. Brown, Mr. Shanor, Mr. Valdez, Ms. Williams and Mayor Kaysen. Dr. Rinne moved to amend by striking Sections 8 and 10 which would remove new category sections dealing with ideological signs, seconded by Mr. Allen. Mr. Wiggam and Mr. Kingston spoke in opposition to the amendment, citing freedom of speech concerns. Buck Holmes, Laramie County Commissioner, questioned whether the recent Laramie County Community College bond election signs would be considered to be ideological signs with Mr. White advising under the proposed ordinance, those types of bond election signs would be considered election signs. Discussion continued on ideological vs. election signs; types of messages/content that may be conveyed on ideological signs; enforcement concerns; freedom of speech, and whether the City's sign restrictions have been legally challenged since the previous court case as initially referenced by Mr. Kingston. Upon inquiry, Mr. White referenced the past court case against the City, as noted previously by Mr. Kingston, and stated when he reviewed the proposed ordinance he felt the UDC changes would be consistent with the judgment that had been entered against the City in that case. He further advised if the pending amendment carried it would be necessary for him to go back and again review the court order and analyze the City's position. Motion to amend failed. Voting "yes" -- Mr. Allen, Ms. Broyles and Dr. Rinne. Voting "no" -- Mr. Brown, Mr. Cook, Mr. Shanor, Mr. Valdez, Ms. Williams and Mayor Kaysen. Main motion as amended carried. Voting "yes" -- Mr. Brown, Mr. Shanor, Mr. Valdez, Ms. Williams and Mayor Kaysen. Voting "no" -- Mr. Allen, Ms. Broyles, Mr. Cook and Dr. Rinne.

ORDINANCE - Pursuant to Section 2.2.1, Zoning Map Amendments, Section 5.1.2, Zoning Districts Established, and Section 5.1.3, Official Zoning Map, of the Unified Development Code, changing the zoning classification from NR-3 Neighborhood Residential – High Density District to MR-2 Medium Density Residential – Developing for Lots 1-10, Block 1, and Lots 1-10, Block 2, Saddle Ridge, Sixth Filing, Cheyenne, Wyoming (located at the southwest corner of the intersection of Countryside Avenue and Medicine Man Trail) -- referred to Public Services Committee (sponsor -- Mr. Allen).

ORDINANCE - Pursuant to Section 2.2.1, Zoning Map Amendments, Section 5.1.2, Zoning Districts Established, and Section 5.1.3, Official Zoning Map, of the Cheyenne Unified Development Code, changing the zoning classification from A-1 Agricultural and Rural Residential (County) to NR-2 Neighborhood Residential – Medium Density for a replat of a portion of Blocks 80 and 81, formerly known as Interior Heights Addition, now vacated, being a portion of the NE¼ of Section 7, T.13N., R.66W., 6th P.M., Cheyenne, Wyoming, to be known as Shiraz Enclave (located east of and adjacent to Snyder Avenue, north of W. Allison Road) -- referred to Public Services Committee (sponsor - Mr. Allen).

ORDINANCE - Creating Chapter 5.78, Towing and Wrecker Recovery Operations, Amending Chapter 5.04, Section 5.04.030, Types of Businesses, Activities and Events, and Chapter 5.08, Section 5.08.270, Towing (Vehicular) of Title 5, Business Licenses and Regulations, and Repealing in its entirety Section 10.12.190, Towing Firm Standards, of Chapter 10.12, Administrative and Enforcement, of Title 10, Vehicles and Traffic, of the Code of the City of Cheyenne, Wyoming -- referred to Finance Committee (sponsors -- Ms. Broyles, Mr. Luna, Mr. Shanor, Mr. Valdez and Ms. Williams).

ORDINANCE - Annexing to the City of Cheyenne, Wyoming, a parcel of land being situated in a portion of Section 13, Township 13 North, Range 67 West of the 6th P.M., Laramie County, Wyoming to be known as the CST Annexation (located northwest of the intersection of West College Drive and Southwest Drive) -- referred to Public Services Committee (sponsor -- Mr. Allen).

ORDINANCE - Annexing to the City of Cheyenne, Wyoming, a parcel of land being situated in a portion of Section 26, Township 14 North, Range 66 West of the 6th P.M., Laramie County, Wyoming to be known as the Koritnik Annexation (located at 3904 Whitney Road approximately 200 feet west of the northwest corner of the intersection of Whitney Road and Countryside Avenue) -- referred to Public Services Committee (sponsor -- Mr. Allen).

RESOLUTION - Authorizing the Mayor and the City Clerk to sign a final plat and development agreement for Terre Pont Subdivision, a portion of the S1/2 of Section 20, T.14N., R.66W., 6th P.M., Cheyenne, Wyoming (located at the northeast corner of the intersection of Prairie Avenue and Frontier Mall Drive). Mark Butler, Inberg Miller Engineering, advised a revised agreement has been prepared and it works toward the City's goal of future completion of Rue Terre and storm sewer work. Mr. Brown moved to adopt with staff recommendation #1, seconded by Mr. Shanor. Mr. Brown moved to amend by substitute (dated Nov. 12, 2013), seconded by Mr. Shanor. Upon inquiry, Jim Flesher, Planning and Development office, explained the substitute, involving changes to resolution and the agreement, now titled a memorandum of understanding (MOU), simplifies development for the completion of Rue Terre and also changes language for income tax purposes contained in the MOU. Motion to amend carried. Voting "yes"

-- all members of the governing body present. Main motion as amended by substitute carried. Voting "yes" -- all members of the governing body present. (#5536 RES/#6091 CON)

RESOLUTION - Authorizing submission of an application to the Wyoming Business Council, Business Ready Community Grant and Loan Program for funding for the construction of a rail spur within the Swan Ranch Industrial Park. Mr. Brown moved to adopt, seconded by Mr. Shanor. Mr. Brown moved to amend by substitute resolution and revised affiliated Project Development and Administration Agreement (dated Nov. 12, 2013), seconded by Ms. Broyles. Motion to amend carried. Voting "yes" -- all members of the governing body present. Mr. Shanor moved to postpone to November 25, 2013, seconded by Mr. Cook. Scott Sutherland, Granite Peak Development, expressed his concerns with a postponement, noting the upcoming deadline for submitting the application to the Wyoming Business Council (WBC), funding availability risk, and concern with a delay affecting clients they are working with who are affiliated with the project. Anya Bendel, Business Development Director, Cheyenne LEADS, voiced support for the project and reiterated the urgency in approving the resolution as soon as possible due to WBC funding (biennium) availability concerns. Comments followed regarding the purpose of postponement, which is to provide City Council members more time to review provisions contained in the revised agreement, which was received on this date; item being previously vetted through City staff, attorneys and parties involved, and concern with effect on the project due to a delay. Upon inquiry regarding funding of the rail spur proposal, Mayor Kaysen provided information relative to the City acting as the "conduit" for the loan, which the City, as well as the County, has done for other types of economic development purposes and which is allowed under state law; information on the application recommendation and approval process involving the WBC and State Land and Investment Board, and project funding and protections to the City. In response to inquiry concerning a default loan payment scenario, Mr. Sutherland provided information on what Granite Peak would be putting up as collateral for the loan and WBC involvement in any default situation, stating any default will not affect the City. Comments followed on wording in the resolution that authorizes submission of the application and whether the governing body would be presented with the opportunity to review the loan documents if the application were approved. Upon inquiry, Dan White, City Attorney, clarified the resolution, as currently written, would authorize signing of the loan documents in the event the loan was approved, however, if the governing body desires to have the loan documents presented for review prior to signature that could be achieved through a change to the last paragraph of the resolution. Mr. White further reviewed several protections for the City that have been written into the agreement. Motion to postpone failed. Voting "no" -- all members of the governing body present. In response to comment on the property's location, Mr. Sutherland explained that approximately half of the rail line will be within newly annexed city limits and half will be in the county, noting that probable future annexation request will be made to extend additional property into the City. Mr. Shanor moved to amend the last paragraph of the resolution beginning with "Be It Further Resolved ..." by inserting the language "after the governing body has authorized execution", seconded by Mr. Brown. It was noted the proposed amending language would result in the following phrase: "... that the Mayor, or his designated representative, *after the governing body has authorized execution*, is authorized to execute a grant agreement and loan documents ...". Motion to amend carried. Voting "yes" -- all members of the governing body present. Main motion as twice amended carried. Voting "yes" -- all members of the governing body present. (#5537 RES/ #6092 CON)

[CAJ] RESOLUTION - Authorizing the submittal of an Application to the Wyoming State Loan and Investment Board for a loan from the Wyoming Clean Water State Revolving fund for an amount not to exceed \$1.3 million for engineering costs for the Phase One Southern Sewer Interceptor Main Project and Authorizing the Mayor, City Clerk and the Director of the Board of Public Utilities to execute the application and all related loan documents. Motion (per Consent Agenda) carried. (#5538)

RESOLUTION - Authorizing the City of Cheyenne, Wyoming to finance Specific Purpose Sales and Use Tax Election projects including but not limited to the costs of the planning, construction, furnishing, equipping, and acquiring materials for improvement of land, including the Public Safety Center and the payment of lease service payments and the costs of the financed project, and related thereto authorizing the execution and delivery of a Purchase Agreement, as seller, with U.S. Bank National Association, as buyer, and a lease with option to purchase, as lessee, with U.S. Bank National Association, as lessor, with respect to the sale and lease of certain real property as part of a financing arrangement and ratifying, approving and confirming previous actions of officers and members of the Governing Body of the City and employees thereof. Mr. Brown moved to adopt, seconded by Ms. Broyles. During discussion, Lois Huff, City Treasurer, explained the city has been trying to find a mechanism to fund large Specific Purpose projects, including the Public Safety Center, prior to the collection of the entire amount of the tax. She provided information on proposed financing arrangements for the Public Safety Building which will involving selling the building to U.S. Bank and leasing it back with financial arrangements structured as a line of credit. Staff was commended on the innovative financing mechanism being proposed. Motion carried. Voting "yes" -- all members of the governing body present. (#5539 RES/#6093 CON)

[CAJ] RESOLUTION - Approving Outside User Water/Sewer Services, by User's Agreement, with Swan Ranch, LLC, Lot 1, Block 1, Swan Ranch Rail Park, 2nd Filing, Laramie County, Wyoming -- referred to Finance Committee (sponsor -- Mr. Valdez).

[CAJ] RESOLUTION - Authorizing the City Treasurer to discharge uncollectible debts in the amount of \$43,734.31 pursuant to Wyo. Stat. §16-4-502 -- referred to Finance Committee (sponsor -- Mr. Brown).

[CAJ] RESOLUTION - Re-appropriating the Fiscal Year 2014 budget of the City of Cheyenne according to the provisions of W.S. §16-4-112 and 16-4-113 -- referred to Finance Committee (sponsor -- Mr. Brown).

[CAJ] RESOLUTION - Authorizing the Mayor and the City Clerk to sign a County Final Plat for Benz Subdivision, a replat of Tract 13 and the South 186.91 feet of Tract 14, Prosser Tracts, Laramie County, Wyoming (located at the southeast corner of Avenue C-1 and Reiner Court) -- referred to Public Services Committee (sponsor -- Mr. Allen).

[CAJ] RESOLUTION - Authorizing the Mayor and the City Clerk to sign a County Final Plat for Deerhaven Subdivision, 3rd Filing, a replat of Lot 1, Block 2, Deerhaven Subdivision, 2nd Filing, Laramie County, Wyoming (located at the southeast corner of the intersection of Montalto Drive and E. Fox Farm Road) -- referred to Public Services Committee (sponsor -- Mr. Allen).

[CA] RESOLUTION - Promulgating maximum approved towing rates for tows within the City of Cheyenne when towing service is requested by the Cheyenne Police Department -- referred to Finance Committee (sponsors -- Ms. Broyles, Mr. Luna, Mr. Shanor, Mr. Valdez and Ms. Williams).

[CA] RESOLUTION - Repealing Resolution No. 2463 and Resolution No. 2616, pertaining to towing services standards and standards for operations, for those towing firms approved to be on the Cheyenne Police Department rotation call list, in their entirety -- referred to Finance Committee (sponsors -- Ms. Broyles, Mr. Luna, Mr. Shanor, Mr. Valdez and Ms. Williams).

[CA] RESOLUTION - Requiring the Mayor to submit to the Governing Body a five-year Capital Improvement Plan that prioritizes expenditures on capital investments by department -- referred to Finance Committee (sponsors -- Mr. Allen and Mr. Shanor).

[CA] RESOLUTION - In Support of the Creation of a Presidential Youth Council that will serve as the voice of young people across the United States -- referred to Public Services Committee (sponsors -- Ms. Broyles and Dr. Rinne).

[CA] RESOLUTION - Adopting the Fox Farm Corridor Plan -- referred to Public Services Committee (sponsors -- Mr. Allen and Ms. Williams).

[CA] RESOLUTION - Authorizing the Mayor and City Clerk of the City of Cheyenne to enter into an agreement for the purchase of real property, described as a parcel of land generally located east of Mountain Road, south of Plainview Road and west of Chapel Hill, consisting of approximately 121,669 square feet (estimated value of \$400,000.00), from Highland United Presbyterian Church for the purpose of land acquisition for a neighborhood park (Community Facilities Fees) -- referred to Finance Committee (sponsor -- Mr. Brown).

[CA] Grant Agreement between the City of Cheyenne, Police Department, and the State of Wyoming Department of Transportation, Highway Safety Program for mobile impaired command post with accessories. Motion (per Consent Agenda) carried. (#6089)

[CA] Agreement between the City of Cheyenne, Engineering Department, and Kaiser-Frontier Midstream, an Oklahoma LLC, to permit limited use of the public right-of-way for the installation of a natural gas pipeline and setting a fee. Motion (per Consent Agenda) carried. (#6090)

[CA] Agreement between the City of Cheyenne, Parks & Recreation Department, and Robert Peccia & Associates for a Municipal Cemetery Expansion Master Plan -- referred to Finance Committee.

[CA] Agreement for services between the City of Cheyenne and the Church of St. Mary to define the responsibility for ground maintenance, operations and office administration services to be provided by City staff for the church at Olivet Cemetery -- referred to Finance Committee.

[CA] Grant Award Agreement between the State of Wyoming, Office of Homeland Security, and the City of Cheyenne, Fire and Rescue Department, for the Grant Award from the United States Department of Homeland Security (DHS), Federal Emergency Management Agency

(FEMA), Grant Program Directorate, State Homeland Security Grant Program (SHGP) Fiscal Year 2013, for the Region 7 State Regional Emergency Response Team, in the amount of \$100,000.00 -- referred to Finance Committee.

[CA] Grant Award Agreement between the State of Wyoming, Office of Homeland Security and the City of Cheyenne, Cheyenne Police Department, for the Grant Award from the United States Department of Homeland Security (DHS), Federal Emergency Management Agency (FEMA), Grant Program Directorate, State Homeland Security Grant Program (SHGP) Fiscal Year 2013, for Law Enforcement and Terrorism Prevention-Oriented Activities (LETPA), in the amount of \$34,814.94 -- referred to Finance Committee.

Consideration of Bid #R-5-14 for furnishing one new mobile command unit for the City of Cheyenne, Police Department (Law Enforcement Grants). Lieutenant Nathan Buseck, Cheyenne Police Department, advised due to the grant amount approved (agenda item previously approved during the meeting), staff determined they would like to upgrade the vehicle size to be acquired with additional amenities. He stated the unit will be used for DUI mobile testing and enforcement purposes, and will also be utilized for assistance to other communities, and requested current bids be rejected to enable re-bidding with different specifications. Mr. Brown moved to reject all bids, seconded by Ms. Broyles. Motion carried. Voting "yes" -- all members of the governing body present.

[CA] Consideration of Bid #R-1-14 for the sale of surplus property described as the South 75 ft. of Lots 7 and 8, Block 229, Original City of Cheyenne, Laramie County, Wyoming (a/k/a 2100 Pioneer Avenue). Motion (per Consent Agenda) carried (accept bid from Richard Cutler, DDS, Cheyenne, in the amount of \$250,000.00 (Revenue to BOPU)).

[CA] Consideration of Bid #M-6-14 for a contract for the Fiscal Year 2014 Miscellaneous Concrete and Street Repairs Project between the City of Cheyenne, Engineering Department, and S&S Builders, LLC, Cheyenne, Wyoming (2011 - 2014 1% Sales Tax) -- referred to Finance Committee.

[CA] Consideration of Bid #M-9-14 for a contract for the Pioneer Park Fencing Project between the City of Cheyenne, Parks & Recreation Department, and Waterford Corporation, Fort Collins, Colorado (Parks Projects) -- referred to Finance Committee.

Announcement was made of a Public Hearing to be held November 25, 2013, at 6:00 p.m. in City Council Chambers, 2101 O'Neil Avenue, Cheyenne, Wyoming, for a transfer of ownership for a retail liquor license application filed with the City Clerk's Office for Wadsworth Old Chicago, Inc. d/b/a Old Chicago Restaurant, 1734 Meadowland Drive, Cheyenne, Wyoming (License currently held by OC Cheyenne, LLC d/b/a Old Chicago Restaurant, 1734 Meadowland Drive, Cheyenne, Wyoming).

Announcement was made of a Public Hearing to be held November 25, 2013, at 6:00 p.m. in City Council Chambers, 2101 O'Neil Avenue, Cheyenne, Wyoming, for a transfer of ownership for a retail liquor license application filed with the City Clerk's Office for High Plains Entertainment, Inc. d/b/a Redwood Lounge and Package Liquor, 2105 E. Lincolnway, Cheyenne, Wyoming (License currently held by Wigwam, Inc. d/b/a Redwood Lounge and Package Liquor,

2105 E. Lincolnway, Cheyenne, Wyoming).

Announcement was made of the appointments of Caroline Alston, Elizabeth Babbitt, Tyler Bedwell, Alex Cole, Alex Farkas, Alexis Ferrari, Juliette Givhan, Rachel Moseley, Emily Piel, Kesslee Stewart, Jason Weber, and Darnell Wheeler to the Mayor's Youth Council, to be confirmed November 25, 2013.

There being no further business to come before the governing body, the meeting was officially adjourned at 8:24 p.m.

Submitted by,

Carol Intlekofer, MMC
City Clerk

This notice is available in alternative, accessible formats upon request.

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